

TENTATIVE RULING FOR CIVSB2226406
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Wilson v. Ford Motor Company, et al

Motion: Attorney Fees

Movant: John Wilson (Wilson) and Genevieve Enos (Enos), (collectively Plaintiffs)

Respondent: Ford Motor Company and Sunrise Ford (Defendants)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On November 21, 2022, Plaintiffs filed a Complaint against Defendants alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of Song-Beverly Act – Civil Code section 1793.2; and (4) Negligent Repair.

On October 2, 2023, Plaintiffs filed the operative Second Amended Complaint (SAC) which added an additional cause of action for Fraudulent Inducement – Concealment. On May 20, 2025, Plaintiffs filed a Conditional Notice of Settlement of Entire Case. On February 26, 2026, Plaintiffs filed the instant motion for attorney fees. Plaintiffs seek the total sum of \$47,132.50 in attorney's fees and costs, which includes a base lodestar fee award of \$31,859.00, a lodestar multiplier of 1.2 in the amount of \$6,371.80, and a further additional sum of \$8,901.70 in costs and expenses. Defendants oppose.

ANALYSIS

Attorney fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc. § 1033.5, subd. (a)(10).) In general, attorney's fees, costs, and expenses are recoverable under the Song-Beverly Act, Civil Code section 1794, subdivision (d), which provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (CC §1794(d))

In the case at hand, on May 9, 2025, Plaintiffs accepted an offer to compromise made pursuant to the provisions of Code of Civil Procedure section 998, which specified that Ford would

pay the sum of \$143,500.00, plus attorney's fees, costs, and expenses, to be determined by Motion. (Kirnos Decl. ¶ 13, Exh C.)

In determining the reasonableness of the fees, the court applies the lodestar method, i.e. multiplying the number of hours reasonably worked by a reasonable hourly rate. (*Flannery v. Prentice* (2001) 26 Cal.4th 572, 584.) The Court can reduce hours that appear unreasonably inflated. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990.) Additionally, inefficient or duplicative efforts are not subject to compensation. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 556.)

The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615.) "[Parties] are not entitled to compensation for this work merely because it was performed. It [is] their burden to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them." (*Baxter v. Bock* (2016) 247 Cal.App.4th 775, 793.)

The total fee may be enhanced or adjusted upwards by considering the following factors: (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).)

In reaching the lodestar, a court begins by deciding "the reasonable hours spent" on the case and multiplying that number by "the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) "[T]he unadorned lodestar reflects the general local hourly rate for a *fee-bearing case*; it does *not* include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider under *Serrano III*." (*Id.* at p. 1138 [discussing *Serrano v. Priest* (1977) 20 Cal.3d 25].)

Reasonable Hourly Rate

A reasonable hourly rate is one that is prevailing in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095.) Requested rates are reasonable if they are "within the range of reasonable rates charged by and judicially

awarded comparable attorneys for comparable work.” (*Children’s Hosp. & Med. Ctr. v. Bontá* (2002) 97 Cal.App.4th 740, 783.)

In the case at hand, Plaintiffs submits an attorney declaration attesting to the experience and billing rates of the nine (9) attorneys and three (3) paralegals/law clerks who have worked on the case at Plaintiffs’ Counsel’s Firm, Knight Law Group, LLP (“KLG”). When the declarations of defense counsel are reviewed, they demonstrate an attorney billing rate between \$200.00 to \$500.00 per hour. (Kirnos Decl. Exhs. D-V.) In regard to other trial court opinions, they demonstrate that other courts have approved rates between \$145 to \$645 per hour. (Kirnos Decl. Exhs. W-HH). Plaintiffs requested rates are reasonable in light of the evidence presented and the Court’s own knowledge of customary rates and experience concerning reasonable and proper fees in San Bernardino County. (*Ingram v. Oroudjian* (9th Cir. 2011) 647 F.3d 925, 928 [holding that judges are justified in relying on their own knowledge of customary rates and their experience concerning reasonable and proper fees].)

Reasonable Hours

Plaintiffs’ Counsel provides a copy of its billing records in support of the time claimed. (See Kirnos Decl. ¶ 2, Exh. A.) Plaintiffs seek reimbursement for approximately 77.2 hours of attorney time. “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *see also Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 (“The party opposing the fee award can be expected to identify the particular charges it considers objectionable”).)

Challenge No. 1: Excessive Number of Billing Timekeepers and Block-Billing

“[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (*Morris v. Hyundai Motor America* (2019) 41 Cal. App. 5th 24, 39 (*Morris*).) In *Morris*, the appellate court upheld the trial court’s determination that the use of eleven attorneys, from two firms, was unreasonable for a non-complex lemon law case. (*Id.* at p. 41.)

Although the number of timekeepers may seem excessive, seven (7) out of twelve (12) of these timekeepers billed less than 5 hours (i.e., Deepak Devabose – 3.1 hours, Jeffery Mukai – 1.1

hours, Jacqueline Martinez – 2.5 hours, Mitch Rosensweig – 2.1, Phil Thomas – 1.9 hours, Abdiel Bustillo – 2.7 hours, and Patricia Cortazar – 2.7 hours). Only five attorneys – Armando Lopez, who billed 18.3 hours; Christopher Swanson, who billed 6.3 hours; Debra Reed, who billed 14.6 hours; Elvira Kamosko, who billed 10.7 hours; and Zachary Powell, who billed 11.7 hours. Thus, it does not seem that this case was overstaffed but rather staffed by various timekeepers who attended to a few tasks over the course of the litigation. This is not unreasonable and is the general practice at lemon law firms, and alone, does not warrant a reduction in any fees.

Block billing, however, “is not objectionable ‘per se,’ though it certainly does increase the risk that the trial court, in a reasonable exercise of its discretion, will discount a fee request. [Citation.] Block billing is particularly problematic in cases where there is a need to separate out work that qualifies for compensation ... from work that does not. [Citation.]” (*Jaramillo v. County of Orange* (2011) 200 Cal.App.4th 811, 830.) A complete denial of Plaintiff’s request is not appropriate under these objections. However, each objectionable billing entry will be reviewed on a case-by-case basis.

Challenge No. 2: Fees Related to Negligent Repair/Fraud Causes of Action

The right to recover attorney fees rests solely under the provisions of the Song-Beverly Act (Civ. Code, § 1794, subd. (d)), i.e., the breaches of warranty claims. Generally, fees need not be apportioned between distinct causes of action when the claims involve a common core of facts or are based on related legal theories, or the plaintiff fails to prevail on every contention pled in the lawsuit. (*Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 129-130; *Wysinger v. Automobile Club of Southern California* (2007) 157 Cal.App.5th 413, 430; *Drouin v. Fleetwood Enterprises* (1985) 163 Cal.App.3d 486, 493.) Furthermore, fee apportionment is not necessary when the claims are so intertwined that it would be impractical, if not impossible, to separate the attorney’s time into compensable and non-compensable units. (*Calvo Fisher & Jacob LLP v. Luan* (2015) 234 Cal.App.4th 608, 625-26.) Whether to apportion fees is within the trial court’s sound discretion, which is only abused when the ruling exceeds the bounds of reason after considering all circumstances before the court. (*Amtower v. Photon Dynamics, Inc.* (2008) 158 Cal.App.4th 1582, 1604.)

In the case at hand, from a review of KLG’s time records, there are several distinct time entries that clearly relate to the fraud and negligent repair claims, i.e., time entries billed related to Ford’s demurrer to the Original Complaint in regard to the negligent repair cause of action, the

drafting of the FAC following the sustaining of Ford's demurrer to the Original Complaint, seeking leave to file the SAC to add the fraud causes of action, and Ford's demurrer to the SAC in regard to the negligent repair and fraud causes of action. The cutting of these entries is appropriate and results in a deduction of the sum of \$3,630.00 from Plaintiffs' total award.

Challenge No. 3: Fees for Instant Motion

Plaintiffs request the sum of \$3,277.50 in attorney's fees for the instant Motion, which equates to a total of 5.7 attorney hours. This includes 1.7 attorneys to draft the Motion, an estimated 1.0 hours to review the opposition, an estimated 2.0 hours to draft a reply brief, and an estimated 1.0 hours to attend the hearing on the Motion, all billed at Christopher Swanson's hourly rate of \$575 per hour. The reply time of 2.0 hours is excessive and so is the estimated time to appear virtually for the hearing. Total time for motion and appearance shall be limited to 4.2 hours which totals \$2415.00.

Challenge No. 4: Excessive Billing

In general, support services, including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (*City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7.) "[A]mong the various factors pertinent to determining what constitutes a reasonable attorney fee is 'the overhead expense of the attorney'. Thus, in a variety of contexts overhead has been regarded as compensable." (*Ibid.*, quoting *Estate of Lanza* (1964) 229 Cal.App.2d 720, 726.) But these charges are distinguishable from purely clerical work, which is not recoverable. (See *Zargarian v. BMW of N. Am., LLC* (C.D. Cal. 2020) 442 F.Supp.3d 1216, 1229 ["It is well established that a plaintiff may not recover fees for time spent on purely clerical work"].) It is appropriate to cut \$4018.30 as clerical tasks and excessive time entries.

Lodestar Multiplier

The purpose of a multiplier is "to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833.) However, the multiplier cannot apply to the work related to the attorney fee motion. (*Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.) Plaintiffs seek a 1.2 multiplier based on the risk of taking this case on a contingency fee basis, and the delay in payment spanning nearly 2.5 years.

“A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.” (*Ketchum, supra*, 24 Cal.4th at p. 1133, quoting Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) “The purpose of a fee enhancement, or so-called multiplier, for contingent risk is to bring the financial incentives for attorneys enforcing important constitutional rights, such as those protected under the anti-SLAPP provision, into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Id.* at p. 1132.)

As explained in *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359 (*Horsford*):

“It has long been recognized, however, that the contingent and deferred nature of the fee award in a civil rights or other case with statutory attorney fees requires that the fee be adjusted in some manner to reflect the fact that the fair market value of legal services provided on that basis is greater than the equivalent noncontingent hourly rate. (*Ketchum, supra*, 24 Cal.4th at pp. 1132-1133.) “ ‘A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.’ ” (*Id.* at p. 1133, quoting with approval from Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) ***The contingency adjustment may be made at the lodestar phase of the court’s calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both).*** (*Ketchum, supra*, 24 Cal.4th at pp. 1133-1134.)” (*Horsford, supra*, 132 Cal.App.4th at pp. 394-395, emphasis added.)

Furthermore, “[a] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Ketchum, supra*, 24 Cal.4th at p. 1139.)

In the case at hand, although KLG obtained a recovery on behalf of their clients, it is not clear the quality of representation “far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at” the rates requested. (*Ibid.*) Furthermore, although counsel displayed some risk by taking this case on a contingency basis, so is their typical practice, and “the contingent nature of this case does not weigh in favor of an upward multiplier because this factor alone is not a proper justification for an upward adjustment

under California law.” (*White v. FCA US LLC* (N.D. Cal. Sep. 20, 2024, No. 22-cv-00954-BLF) 2024 U.S. Dist. LEXIS 170479, at *19.)

KLK’s claimed hourly rates, which include higher rates charged by lemon law defense counsel, as admitted by Plaintiffs, already adequately compensates Plaintiffs for the contingent nature of the litigation and delay in payment. Although Plaintiffs ultimately prevailed, the results, on their face, do not appear so impressive as to justify an increased award given the rote nature of lemon law cases.

Costs

Under the Song Beverly Consumer Warranty Act (“the Act”), the prevailing buyer can recover his expenses. (Civ. Code, § 1794, subd. (d).) Expenses encompass out-of-pocket costs beyond those defined in Code of Civil Procedure section 1033.5. (*Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 457; *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) The expenses must be reasonably incurred in connection with commencing and prosecuting the action. (Civ. Code, § 1794, subd. (d).) Plaintiffs seek \$8,901.70 in costs and expenses, which are accounted for in Plaintiffs’ Memorandum of Costs filed on February 26, 2026.

Furthermore, except as otherwise stated, a prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b).) The costs allowed shall be reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., §1033.5, subd. (c)(2)-(3).) The filing of a verified memorandum of costs is sufficient to establish that the sought costs are reasonable and necessary, thereby the prevailing party need not submit any bills, invoices, statements, or other documents. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267 (*Jones*).) If the items on the memorandum of costs appear to be proper charges, then the party seeking to tax those costs bears the burden that the costs are unreasonable or unnecessary, but if the items are properly objected to, then the burden of proof lies with the party seeking to recover the costs to show their necessity and reasonableness. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774; *Perko’s Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 283, 243.)

The filing of a verified memorandum of costs is sufficient to establish that the sought costs are reasonable and necessary, and the prevailing party need not submit any bills, invoices, statements, or other documents. (*Jones, supra*, 63 Cal.App.4th at p. 1267.) However, in reply,

Plaintiff did submit proof of the costs. The burden is on Ford to establish that the listed costs/expenses are unreasonable or unnecessary. Ford has failed to do just that.

RULING

1. Plaintiff's Motion for Attorney Fees is GRANTED IN PART. Court awards a total of \$23,348.20 in fees. (\$31,859 – \$3630 – \$862.50 – \$4018.30)
2. Plaintiff is awarded costs of \$8901.70.
3. Movant to give Notice.